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#7 - ERIC BRAKEBILL JONES vs KATHY HART

MOTION TO STRIKE PORTIONS OF DEFENDANT'S ANSWER

Plaintiff Eric Brakebill Jones moves to strike the Nineteenth, Twenty-First, Twenty-Fourth, and Twenty-Fifth affirmative defenses from Defendant Kathy Hart's answer.

Jones filed the complaint on March 16, 2026, asserting causes of action for fraud, breach of contract, common counts, conversion, bank fraud/intentional interference, and intentional infliction of emotional distress.

Tentative Ruling

The motion is DENIED as to the Nineteenth affirmative defense, except that the phrase "including in light of the written terms of the Invoice and Contract attached and referenced" is stricken.

The Twenty-First, Twenty-Fourth, and Twenty-Fifth affirmative defenses are stricken with leave to amend. The motion is GRANTED as to these affirmative defenses.

Defendant may file and serve an amended answer within 10 days after service of notice of entry of this order. Defendant is not precluded from repleading any amended defense in terms specific to the facts and theories at issue in this action.

Moving Party is to give notice.

Authority and Analysis

Under Code of Civil Procedure section 435, "[a]ny party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof." (Code Civ. Proc., § 435, subd. (b)(1).) Code of Civil Procedure section 436 provides as follows:

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

(Code Civ. Proc., § 436.) In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

The Nineteenth affirmative defense alleges that, as to fraud-based claims, Plaintiff did not justifiably rely on any alleged misrepresentation or omission, “including in light of the written terms of the Invoice and Contract attached and referenced.” The core of the Nineteenth defense is pertinent to Plaintiff’s fraud-based claims because it pleads lack of justifiable reliance. The motion is, therefore, denied as to the Nineteenth affirmative defense except for the clause referring to “the written terms of the Invoice and Contract attached and referenced,” because the answer excerpt before the Court contains no such attachment on its face.

The Twenty-First affirmative defense alleges that Plaintiff’s claims are barred, limited, or governed by the terms and conditions of the parties’ “Invoice and Contract,” including “payment, delivery, installation timing, title retention, dispute resolution, and venue provisions.” As pleaded, it is dominated by specific commercial terms such as “delivery,” “installation timing,” and “title retention.” Jones’s motion describes this action as “arising from caretaking and financial-agency conduct” rather than a goods or buildout dispute, and Hart’s opposition responds by characterizing the disputed wording as imprecise or surplus. The Court agrees with Jones and rules that the Twenty-First affirmative defense is stricken as pleaded, with leave to amend.

The Twenty-Fourth affirmative defense alleges that Plaintiff assumed risks associated with his “new business venture and premises obligations, including rent and buildout timing.” The parties dispute whether Plaintiff’s claimed business-loss damages concern an existing business or a new venture. That dispute is not resolved on a motion to strike. However, as presently worded, this affirmative defense relies on highly specific allegations about “premises obligations,” “rent,” and “buildout timing.” That defense is too disconnected from the issues clearly shown in the record and is stricken as pleaded, with leave to amend.

The Twenty-Fifth affirmative defense alleges that, to the extent Plaintiff seeks “restitution or UCL remedies,” recovery is limited to money or property lost as a result of the alleged practice. Jones’s papers state that no Unfair Competition Law claim is pleaded, and Hart’s opposition does not identify a separate UCL cause of action. The reference to “UCL remedies” is therefore irrelevant on this record. Because the defense also appears intended to address possible restitutionary relief, the Court will not foreclose amendment; the Twenty-Fifth affirmative defense is stricken as pleaded, with leave to amend.

The Court notes that a Motion for Judgment on the Pleadings is scheduled for July 22, 2026. If the parties stipulate, the Court will advance the hearing date to be heard on July 21, 2026, concurrent with the instant Motion to Strike.